HEADNOTE

"1. Patent on liposomes for RNA vaccine delivery held (mostly) valid and infringed.
2. The claimed range of pKa 5.0-6.8 is not to be interpreted as containing rigid cut-off limits in the present case. The claim, which includes a specific measurement method, should be read together with the description which contains a reference to a measurement imprecision for this method of ±0.2 pKa units.
3. The patent is entitled to partial priorities. The patent may rely on P1 (US830) for the range of pKa 5.0-6.7 (so partially according to G1/15), with date 6 July 2010 and for the claim with upper pKa limit 6.8 on P2 (US 837), dated 31 August 2010.
4. WO799 which discloses DLinDMA (pKa 5.8) is not intervening prior art in the sense of Art. 54.3 EPC for the relevant range of pKa 5.0-6.7. Both the patent (in view of P1) and WO799 can invoke as earliest date 6 July 2010. This means that WO799 does not have a date prior to the (partial) priority date of the patent.
5. For the assessment of novelty, the claims of a prior art patent or patent application form an integral part of its technical disclosure and must be read together with the description. This does however not mean that any combination of (features from) claims of a prior art patent necessarily forms a direct and unambiguous disclosure of the subject-matter of this combination, in particular if the combination implies a(n arbitrary) selection. When the combination is not unambiguously derivable for the skilled person, it is not an enabling disclosure that anticipates the patent at issue. What matters is whether the skilled person understands that such an assembly of (features from) claims is disclosed and reflects the technical teaching of the document (see EPO BoA T 1658/12).
6. Common General Knowledge (CGK) is not primarily related to a specific document, but rather to a specific knowledge. This knowledge is typically found in textbooks that introduce the field of technology in question. For information to qualify as CGK, it should be present in more than one document. In highly specialised areas, the document may be a review article, handbook or handbook chapter. However, the issue is not whether the information asserted to be CGK is contained in a well-known and widely accepted document. To determine the scope of CGK, the real issue is whether the relevant factual information is so elementary, convincing and consensual that a person skilled in the relevant field will necessarily know it and whether the relevant community has accepted it as an established empirical fact.
7. The interdependent, integrated and centrally controlled operational structure of PBNT means that individual subsidiaries, including the (thirty) Defendants, perform or

> *contribute as joint infringers, to infringing acts which concern various jurisdictions, without the precise scope of the infringing or contributory act of each individual Defendant being distinguishable. Infringing acts in the Relevant Territory are however, jointly attributable to the Defendants.*
> *8. Jurisdiction and territorial scope of the injunction and other measures extend to all EPC countries where the patent is valid, with the exception of Ireland and the UK."*

COURT
Local Division in The Hague

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 2 590 626

LIPOSOMES WITH LIPIDS HAVING AN ADVANTAGEOUS PKA-VALUE FOR RNA DELIVERY

KEYWORDS
RNA vaccines | partial priority | common general knowledge | joint infringement | long-arm jurisdiction

SUMMARY
The Local Division in The Hague ruled on an infringement action with a counterclaim for revocation. The patent at issue relates to liposomes with lipids having an advantageous pKa-value for RNA delivery. According to the headnotes of the decision, the patent on liposomes for RNA vaccine delivery was held mostly valid and infringed. The claimed pKa range of 5.0 to 6.8 should not be read as having rigid cut-off limits in this case. Instead, the claim must be interpreted together with the description, which references a measurement imprecision of ±0.2 pKa units for the relevant method. Furthermore, the patent is entitled to partial priorities. It relies on an earlier US application for the pKa range 5.0 to 6.7 dated 6 July 2010. A later US application dated 31 August 2010 provides priority for the upper pKa limit of 6.8. Additionally, prior art document WO799 discloses DLinDMA with a pKa of 5.8. This document does not constitute intervening prior art under Article 54(3) EPC for the relevant pKa range. Both the patent and WO799 can invoke the same earliest date of 6 July 2010. Therefore, WO799 does not predate the patent's priority date. In assessing novelty, the claims of a prior art patent must be read together with its description. This forms an integral part of the disclosure. However, combining features from prior art claims does not necessarily constitute direct anticipation. The skilled person must unambiguously understand such a combination as the technical teaching. Therefore, an enabling disclosure requires clear derivability that reflects the intended technical scope. The court further clarified that Common General Knowledge must be established through multiple reliable sources. In specialized fields, review articles and handbooks may serve as appropriate sources. What ultimately matters is whether the information is elementary and consensually accepted. The skilled person would necessarily know it as an established fact. Additionally, the interdependent operational structure of the corporate entity means individual subsidiaries jointly contribute to infringing acts. This occurs across multiple jurisdictions. Consequently, infringing acts within the relevant territory are jointly attributable to all defendants. Finally, the court's jurisdiction and injunctive measures extend to all EPC countries where the patent is valid. Ireland and the United Kingdom are exceptions to this territorial scope.